

Record of Beneficiary Vote for Election of Successor Trustees

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

Deed Reference: TR 31 PG 07 PC 10

Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine

Date of Trust Agreement: 2005

I. Purpose of Vote

Pursuant to Article 10.2 of the Flanagan Family 321 Trust Agreement, upon the resignation of both initial Co-Trustees, Jane E Birckhead and Elizabeth Mary Young, the successor Trustee or Trustees shall be elected by a majority of the beneficiaries.

This vote is conducted to elect Successor Co-Trustees to replace the resigning initial Co-Trustees. The resignations of Jane E Birckhead and Elizabeth Mary Young are attached hereto as supporting documents.

II. Eligible Voters

Article 10.2 requires a majority vote of the beneficiaries. The Settlor's five (5) living children constitute the beneficiaries eligible to vote:

1. Mary Jean Foss
2. John M. Flanagan
3. Jane E Birckhead
4. Elizabeth Mary Young
5. Christopher J. Flanagan

A majority requires at least three (3) of the five (5) eligible beneficiaries to vote in favor.

III. Nominees for Successor Co-Trustees

The following individuals have been nominated to serve as Successor Co-Trustees of the Flanagan Family 321 Trust:

John M. Flanagan
Christopher J. Flanagan

IV. Date and Method of Vote

Date of Vote: _____, 2026

Method: (check one)

- ☐ In person
- ☐ By telephone conference
- ☐ By written ballot (mail or email)
- ☐ Combination of methods

V. Record of Individual Votes

Each beneficiary's vote is recorded below. A vote of "In Favor" indicates approval of both John M. Flanagan and Christopher J. Flanagan as Successor Co-Trustees.

1. Mary Jean Foss

Vote: ☐ In Favor ☐ Opposed ☐ Abstain
Signature: _____
Date: _____

2. John M. Flanagan

Vote: ☐ In Favor ☐ Opposed ☐ Abstain
Signature: _____
Date: _____

3. Jane E Birckhead

Vote: ☐ In Favor ☐ Opposed ☐ Abstain
Signature: _____
Date: _____

4. Elizabeth Mary Young

Vote: ☐ In Favor ☐ Opposed ☐ Abstain
Signature: _____
Date: _____

5. Christopher J. Flanagan

Vote: ☐ In Favor ☐ Opposed ☐ Abstain
Signature: _____
Date: _____

VI. Results

Total In Favor: _____
Total Opposed: _____
Total Abstain: _____

Majority Required: 3 of 5

Result: (check one)

☐ APPROVED – A majority of the beneficiaries have elected John M. Flanagan and Christopher J. Flanagan as Successor Co-Trustees of the Flanagan Family 321 Trust, effective upon their acceptance below.

☐ NOT APPROVED – The nomination did not receive the required majority.

VII. Acceptance by Successor Co-Trustees

We, the undersigned, having been duly elected by a majority of the beneficiaries pursuant to Article 10.2 of the Flanagan Family 321 Trust Agreement, hereby accept the appointment as Successor Co-Trustees. We agree to be bound by all terms of the Trust Agreement and acknowledge that, pursuant to Article 8.2, the concurrence and joinder of both Co-Trustees shall be required for all matters pertaining to the administration of the Trust.

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Address: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Address: _____

VIII. Certification

I certify that this Record of Beneficiary Vote accurately reflects the vote conducted on _____, 2026, and that all eligible beneficiaries were given proper notice and opportunity to participate.

Certified by: _____

Print Name: _____

Date: _____

IX. Supporting Documents

The following documents are attached to or accompany this Record of Vote:

1. Resignation of Trustee – Jane E Birckhead (dated _____)
2. Resignation of Trustee – Elizabeth Mary Young (dated _____)
3. Copy of the Flanagan Family 321 Trust Agreement (2005)
4. Notice of Vote sent to all beneficiaries (dated _____)

X. Notary Acknowledgement

STATE OF _____

COUNTY OF _____

On _____, 2026, before me, _____ (Notary Public), personally appeared the individuals whose signatures appear above, who proved to me on the basis of satisfactory evidence to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacities.

I certify under PENALTY OF PERJURY under the laws of the State of _____ that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature: _____ (Seal)

My Commission Expires: _____